

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

September 14, 2020

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:07 p.m. via electronic conference meeting. Attending electronic conference meeting were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook (joining meeting at 6:03 p.m.), Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor (joining meeting at 6:03 p.m.) and Jeff White. Also attending: Kris Jones, City Clerk.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. Esquibel and Mr. White, agenda item #19 (a) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”.

[CA] Minutes from Regular Meeting of the Governing Body on August 24, 2020. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meeting of the Governing Body on August 26, 2020. Motion (per Consent Agenda) carried.

Mayor Orr opened a public hearing for a transfer of ownership for a resort liquor license application filed with the City Clerk’s Office for Omsai Hospitality, LLC d/b/a Red Lion and Conference Center of Cheyenne, 204 W. Fox Farm Rd., Cheyenne, Wyoming (license currently held by Driftwood Special Servicing, LLC d/b/a Red Lion Hotel Cheyenne & Conference Center). Billie Addelman, attorney with Hirst Applegate representing the applicant, advised he was available for any questions. There being no further comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing and referred the item to Finance Committee.

ORDINANCE – 2nd READING – Amending various sections of Chapter 15.50, Historic Design Guidelines, of Title 15, Buildings and Construction, of the Code of the City of Cheyenne, Wyoming. Reporting for Public Services Committee, Mr. Case moved to approve on second reading, seconded by Mr. Cook. Upon inquiry, Charles Bloom, Director of Planning and Development, explained the ordinance amendment request is on behalf of the Historic Preservation Board and notice of the amendment wasn’t mailed to adjacent property owners with the exception of a vacant property behind the Governor’s mansion. Dr. Rinne explained the Historic Design Guidelines were created in 2004. Mr. Bloom reported the ordinance amendment removes a step which currently requires changes or building permits to go to the Planning and Development

office, and these will now go straight to the Historic Preservation Board. It was noted the amendment is administrative and not substantive, and the public sector has expressed support for the amendment. Mr. Bloom explained he is continuing to work with the City's Attorney's office related to what submittal type is necessary to go to the Historic Preservation Board and anticipates there will be a few minor ordinance changes presented at the September 22nd Public Services Committee meeting. He further noted there is no requirement to provide public notice. Upon inquiry, Mr. Bloom advised the proposed amendment was in the Historic Preservation Board's annual work plan they develop every year and mostly due to vacant property north of Governor's mansion. Support for the ordinance was expressed. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn voting "no".

ORDINANCE – 1st READING – Amending the Unified Development Code of the City of Cheyenne, Wyoming to create the Support Services Zone District and establishing design criteria – referred to Public Services Committee. (Sponsor – Mr. Case)

[CA] RESOLUTION – Amending Resolution #3597, a Citizen Participation Plan, which establishes objectives, procedures, requirements, and responsibilities for the involvement of lower income individuals, as well as the community at large in the development of a City Comprehensive Five Year Housing and Community Development Plan. Motion (per Consent Agenda) carried. (#6086)

[CA] RESOLUTION – Accepting a grant in the amount of \$150,000.00 from the Cheyenne Community Recreation District (Recreation Mill) for the replacement of the restroom/concession building at the Cheyenne Junior League Complex. Motion (per Consent Agenda) carried. (#6087)

[CA] RESOLUTION – Creating a Special District for the 'Golf, it's the Least of our Problems' Golf Tournament to be held on September 26, 2020, in which the possession of open containers is permitted within the Downtown District Boundaries. Motion (per Consent Agenda) carried. (#6088)

[CA] RESOLUTION – Approving water and sanitary sewer services, by outside user water and sanitary sewer services agreements, for SJT, LLC, for Tracts 21, 22, and 23, Green Subdivision, 3rd Filing, situated in the SW¹/₄SW¹/₄ of Section 22, Township 14 North, Range 66 West, of the 6th P.M., Laramie County, Wyoming. Motion (per Consent Agenda) carried. (#6089)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a Final Plat for Buffalo Ridge Estates, Eleventh Filing, a replat of all of Lot 15, Block 21, Buffalo Ridge Estates, Cheyenne, Laramie County, Wyoming (located southeast of the intersection of Hilltop Avenue and Bluff Place) – referred to Public Services Committee. (Sponsor – Mr. Case)

[CA] RESOLUTION – Providing for partial vacation of the Frontier North Final Plat – referred to Public Services Committee. (Sponsor – Mr. Case)

[CA] RESOLUTION – Reappropriating the Fiscal Year 2021 Budget of the City of Cheyenne according to the provisions of W.S. 16-4-112 & 16-4-113 – referred to Finance Committee. (Sponsor – Mr. Luna)

[CA] Preliminary Plat for Whitney Ranch, 4th Filing, a plat of a portion of the SE¼, Section 23, T14N, R66W, of the 6th PM, Laramie County, Wyoming (located northeast of the intersection of Dell Range Boulevard and Whitney Road) – referred to Public Services Committee.

[CA] Volleyball Officiating Agreement between the City of Cheyenne and the Officials for Fun Club for the Community Recreation and Events 2020-2021 season for youth and adult volleyball leagues (Recreation Programs Fund). Motion (per Consent Agenda) carried. (#7229)

[CA] Notice of renewal of United States Department of Agriculture Lease Number 57-82HW-1-0171/City Contract No. 150, between the United States of America, acting through the Agricultural Research Service, and the City of Cheyenne for the lease of 1,998 acres of land known as the High Plains Grasslands Research Station, for the period of October 1, 2019 through September 30, 2020 (Revenue to City). Motion (per Consent Agenda) carried. (#150)

[CA] Notice of renewal of United States Department of Agriculture Lease Number 57-82HW-1-0171/City Contract No. 150, between the United States of America, acting through the Agricultural Research Service, and the City of Cheyenne for the lease of 1,998 acres of land known as the High Plains Grasslands Research Station, for the period of October 1, 2020 through September 30, 2021 (Revenue to City). Motion (per Consent Agenda) carried. (#150)

[CA] Memorandum of Understanding between the City of Cheyenne, Cheyenne Police Department, and Laramie County School District No. 1 for school resource officers for the 2020-2021 school year and summer school 2021 (Revenue to City) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO), and Summit Engineering for the East Park Greenway Underpass and Drainage Plan (MPO Federal Funding) – referred to Finance Committee.

Contract Modification #2 to Contract #6933 between the City of Cheyenne and Vortex International Aquatic Play Solutions to upgrade ADA Visual Access Distinction and Construction (General Fund Reserves). Ben Hornok, owner's representative for the project, provided a detailed overview of the contract modification. Reporting for Finance Committee, Mr. White moved to approve in an amount not to exceed \$4,345.00, seconded by Mr. Case. Upon inquiry, Alessandra McCoy Fakelman, Deputy City Attorney, explained it is her understanding there is a \$100,000.00 voucher the City has not paid for the project because Vortex International Play Solutions hasn't completed everything on the project list. Mr. Laybourn expressed concern relating to the project and noted that after a site visit, he was made aware of problems with the system, acknowledged how long and difficult this project has been and requested consideration to further review the issues prior to final payment to Vortex. It was noted by Mr. Shanor that the item received a unanimous vote of support at the September 8th Finance Committee meeting and was eligible for the Consent Agenda. Mr. Laybourn stated he voted in support at that meeting however, following that, became

aware of the issues. Mr. Hornok reported there is a current outstanding invoice balance amount of \$143,343.00 and by approving this change order it would bring the total due to \$147,000.00. He further supported that the City should have assurance the project is complete and the splash pad is functioning properly prior to final payment, noting he is currently tracking the progress of the project. It was noted PH balance testing is occurring 3 times daily and there have been problems establishing acceptable levels which triggers the splash pad to shut down if outside of those parameters. Jason Sanchez, Community Recreation & Events Deputy Director, reported there are additional issues with the project within the UV water cleaning system and advised he will not approve a final payment to Vortex until the splash pad is functioning properly. It was further noted this modification is strictly related to ADA concerns. Mr. Sanchez advised there have been issues from the onset primarily with the UV system. There have been fewer issues recently due to tech support received, however, faults over the weekend caused pumps to shut down. He wants to make sure the system is functioning appropriately before it is shut down for the winter. Mr. Case raised a point of order as to discussion being germane to the modification before the governing body. Mayor Orr asked for clarification that the proposed modification is an additional expense above the original amount and Mr. Hornok confirmed it was an additional expense. Motion carried. Voting “yes”—all members of the governing body with the exception of Mr. Laybourn and Mayor Orr voting “no”. (#6933)

[CA] Contract Modification #1 to Contract #6981 between the City of Cheyenne and Plan One/Architects to extend the completion date for roof replacements at Fleet Maintenance, Parks Maintenance and Cheyenne Aquatics Center. Motion (per Consent Agenda) carried. (#6981)

[CA] Contract Modification #1 to Contract #6786 between the City of Cheyenne and Novo Benefits, LLC, to extend the term for an additional three (3) year period (General Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7195 between the City of Cheyenne and Simon Contractors for additional construction services for the Prairie Avenue and Frontier Mall Drive Intersection Project (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #6960 between the City of Cheyenne and Reiman Corporation for cost impacts associated with unforeseen site conditions, partial release of retainage and reduction of retainage from 10% to 5% to meet current state statutes for the Christensen Railroad Overpass & Corridor Project (Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #6976 between the City of Cheyenne and Reiman Corporation for partial release of retainage and additional funds for final landscaping for the Evers Blvd. Reconstruction Project (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration to purchase between the City of Cheyenne, and Alamo Industrial, Seguin, TX, for the purchase of an Alamo Versa Pro Three Gang Flail Mower (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Alamo Industrial, Seguin, TX, in an amount not to exceed \$68,502.00).

[CA] Consideration of Bid #E-1-21 for a contract between the City of Cheyenne and A1 Organics for furnishing compost screening and grinding services for the City of Cheyenne, Compost Facility (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-4-21 for a contract between the City of Cheyenne and Mid-America Pool Renovation, Inc. for the Cheyenne Aquatic Center Main Pool Shell Resurfacing Project (2012 Specific Purpose Option Tax Overage Funds) – referred to Finance Committee.

[CA] Consideration of Bid #S-5-21 for a contract between the City of Cheyenne and Academy Sports Turf, Inc. for the Powers Field Synthetic Turf Replacement Project (Land and Water Conservation Grant and Recreation Programs Fund Player's Fees) – referred to Finance Committee.

[CA] Transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Old Chicago Taproom II LLC d/b/a Old Chicago #74, 1734 Meadowland Drive, Cheyenne, Wyoming (license currently held by Wadsworth Old Chicago Inc. d/b/a Old Chicago Restaurant. Motion (per Consent Agenda) carried.

No comments were made on the Voucher Report as presented.

Under other business:

Mike O'Donnell, City Attorney, reported he has received concerns related to CARES Act funding and noted the City has been struggling to get approval of applications. He advised the SLIB Board has set up a new system with an allocation system which replaces the first come first serve system and utilizes a formula to establish "coffee cans" which allocates money to individual municipal and community agencies. Mr. O'Donnell reported the City's allocation is currently \$7 million, noting that isn't a guaranteed amount, just the amount the City can apply up to. He further explained the application process is through the Office of State Lands and Investments and the Attorney General's office and that he has received guidance from State Lands related to the format for payroll reimbursements. He explained the required information has been submitted twice and that he will submit again as requested relating to the new guidelines. He recently received information on how to apply for Personal Protective Equipment (PPE) and technology grants and that although this process is easier, it is still cumbersome. It was explained that in order to acquire technology equipment, this requires a bidding process that goes through the City's purchasing policy procedures and must receive official support from the governing body (timeline and deadline is very tight). Mr. O'Donnell explained he is working with outside agencies such as ARC and Safe Harbor related to their independent applications. Upon inquiry, he reported there are options to approve bidding documents prior to the deadlines and special meetings could be scheduled to expedite the process. Mayor Orr commended the following City staff members for their diligent work on CARES Act funding options: City Attorney Michael O'Donnell, Shellie Colgan, Attorney's office, TJ Barttelbort, Purchasing and Brendan Ames, Mayor's office.

[Clerk's note: Mr. Case, Mr. Cook, Mr. Roybal and Mr. White vacated committee room 104 during Other Business at approximately 6:45 p.m. and were absent for the remainder of the meeting] Mr. Laybourn echoed the Mayor's appreciation to City staff working on the CARES Act funding application process. Mr. Laybourn reported he has concerns with the consent agenda process noting many items are considered to be routine items, however, he believes many of them should have full governing body discussion as well as allowing for public comment. He further commented that he believes it is important that the community is aware of these types of items and questioned the use of the consent agenda generally. Upon inquiry, Mayor Orr advised there are issues related to public access in returning to council chambers for public meetings, noting the difficulty of meeting the 6 foot separation for social distancing guidelines for members of the governing body on the dais. Mr. O'Donnell confirmed council chambers is inadequate for meeting health guidelines. He reported they have been working on solutions to utilize the Civic Center however, current technology is insufficient to stream the meeting and generally the facility can't satisfy health guidelines. He further advised the City was denied a recent funding application request for the necessary equipment, however, the City plans to reapply.

Upon inquiry from Mr. Luna, Jason Sanchez, Community Recreation & Events Deputy Director, advised they recently received approval to hire additional part-time staff following the reduction in force to assist with park maintenance and have begun tending to neglected park areas. He further reported recently planted trees are being hand watered while the weather allows and that numerous parks are receiving irrigation. Upon inquiry from Mr. Laybourn, Mr. Sanchez further advised Cheyenne Frontier Days (CFD) volunteers have been assisting with maintenance of Pando Pond and provided information on required releases signed by Greenway volunteers for clean-up efforts. Mayor Orr advised some clean-up requirements were expanded beyond trash pickup and involved use of machinery.

Upon inquiry from Mr. Esquibel, Mayor Orr advised warranty information will be provided to members of the City Council relating to the Splash Pad Project.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:50p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
September 23, 2020